

Chapter Title: Divine Justice, Evil, and Tradition: Comparative Reflections

Chapter Author(s): Richard B. Miller

Book Title: The Ethics of War and Peace

Book Subtitle: Religious and Secular Perspectives

Book Editor(s): Terry Nardin

Published by: Princeton University Press. (1996)

Stable URL: <https://www.jstor.org/stable/j.ctv173f1cg.19>

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at <https://about.jstor.org/terms>



JSTOR

Princeton University Press is collaborating with JSTOR to digitize, preserve and extend access to *The Ethics of War and Peace*

Divine Justice, Evil, and Tradition: Comparative Reflections

Richard B. Miller

THIS BOOK INVITES us to examine several approaches to the ethics of war and peace, and to do so comparatively and cross-culturally. It is premised on the idea that conversation across traditions and cultures is itself a good, that mutual understanding is beneficial in a world ravaged by conflict, human suffering, and ongoing suspicion. Cross-cultural comparison is seldom only an academic task. It is often joined to the hope that dialogue can reduce the occasions of political violence and cultural animosity, that familiarity more often hinders than breeds contempt. Thus we are invited to locate areas for conversation across cultures and traditions, or at least to consider where ethical traditions share common ground.

Here I wish to call attention to general philosophical and religious concepts that illumine the extent to which Catholic natural law, political realism, Judaism, Islam, Christian nonviolence, and feminism might find resources for dialogue. As the previous essays reveal, each of these perspectives provides ethical guidelines for conduct in war and peace. But each tradition does so by drawing from a wider constellation of beliefs and symbols without which those guidelines would be incomplete, if not unintelligible. Moreover, each tradition includes abundant materials for developing its ethical norms and directives, requiring those who interpret it to make judgments about which sources are (or ought to be) most authoritative or representative.

With these concerns about beliefs, symbols, and interpretation in mind, I will cluster my comments under three rubrics: (1) the implications of theology for ethics, especially concerning the morality of extremity in war; (2) the different symbolisms of evil in moral discourse about war; and (3) hermeneutical observations about the problem of representing a tradition.

THEODICY AND MORALITY

Several of the perspectives discussed in this volume adopt the counterintuitive notion that war is not the opposite of peace. According to the Catholic natural law tradition, a just war aims to restore peace, understood as harmony and the tranquility of order; in Judaism, final peace is messianic

and eschatological, a condition that may be brought about by violent means; in Islam, war is the instrument through which the abode of peace will triumph over the *dar al-harb*. Yet, however counterintuitive such notions may be, they are intelligible given some basic cosmological considerations about God's relation to history or nature. Such theological considerations, moreover, have direct bearing on what may and may not be done in the course of war itself.

In Judaism, Islam, and the Catholic natural law tradition, war is joined to peace as part of a divine ordering of the cosmos and human history, an ordering that is believed to be just. Jews and Muslims ascertain divine justice from God's actions in history, as these actions are described in sacred texts and authoritative commentary (*midrash* and *tafsir*, respectively). Here the task of practical reasoning is interpretive and analogical: it must ascertain the requirements of the divine will for situations that resemble past events in which God has acted or revealed clear directives.

Catholic natural lawyers draw inferences about the requirements of justice from the order of being, created by God. This theological dimension is not explicitly developed in John Finnis's rendition of the Catholic natural law tradition, but it has an important role to play in that tradition's understanding of peace and humanity's enjoyment of the supreme good.¹ Human intentions, when regulated by natural law, cohere with divinely ordered purposes. For Aquinas, we participate in divine reason insofar as we ascertain dictates of natural law, some of which are self-evident and others of which can be inferred from essential human ends.² Such ends, the basis for human fulfillment in this life, bear the imprint of the divine design. They imitate—that is, both “mirror” and “are caused by”—the eternal law, the mind of God. For this reason, Aquinas remarks that the natural law is the eternal law's participation in rational creatures (*participatio legis aeternae in rationali creatura*).³ According to Aquinas, moreover, the eternal ideas of the created order—the blueprint of the cosmos—reside in the mind of God. These ideas serve as the exemplars for the cosmic design, the ordering of things to their respective ends.⁴

This attention to God in relation to history or nature means that Jews, Muslims, and Catholic natural lawyers typically understand war and peace within a larger cosmology, one that is constrained by the conviction of *theodicy*, or divine justice. In Judaism and Islam, God commands war as part of an overall aim of establishing peace and well-being in the future; in the Catholic natural law tradition, war is to be carried out in accordance with the designs of nature, which bear the imprint of a divine, rational Creator.

To be sure, a divine-command morality differs from the Catholic natural law: the former reveals God's will, whereas the latter connects divine purposes to reason and natural processes. But such differences should not be exaggerated, since divine-command morality and Catholic natural law

morality both place great weight on divine sovereignty over human affairs. God is, respectively, either the stage manager or the set designer of political life. Understood as either Providence or Designer, God (and God's purposes) provides strong sanction for the institution of war as a vehicle for realizing peace. In none of these traditions is war intrinsically evil. Invoking the history of revelation, documented in sacred scriptures, or the notion that self-defense is a natural, rational duty, these traditions embrace the idea that war can be an instrument for providing human beings their just due.

Attention to divine ordering and justice helps account for the proper grounds for war, the proper intentions or motives for war, the relationship between war and peace, and the limits of political obligation in these three traditions. Moreover—and most importantly—this outlook helps explain a notable reticence surrounding the morality of extremity in Judaism, Catholic natural law, and Islam. War is justified when it coheres with providential or natural purposes, but decisions *in* war must be disciplined by the belief that the cosmos is finally on the side of justice. Accordingly, theodicy produces an *ethical constraint* on the conduct of war in these traditions, especially regarding the morality of means.

Stated simply, for those who embrace the idea of theodicy, it is inconceivable that divine revelation or the natural law would command some kind of evil so that good may come.⁵ Theodicy, in short, mitigates crude realism or utilitarian calculations in war. The conviction that the cosmos is on the side of justice means that the right will always be joined to the good, although the realization of the good might lie in the future. If, by contrast, those who are righteous will suffer for their righteousness, the system seems unfair, and reflects badly on the morality of Providence. Similarly, if evil must be done so that good may come, then it would seem that the unjust have an advantage over the just, whose actions seem futile by comparison.

Accordingly, theodicy rules out an ethic of necessity, or sacrificing moral duties for reasons of prudence or utility. Instead, these three traditions generally hold to the idea that virtue will be its own reward, either now or later. In an ethic constrained by the belief in divine justice, we need not sacrifice morality to prudence, or ethics to necessity, because the good has been guaranteed to those who follow righteousness. The individual is freed, then, from having to make history “come out right.”⁶ Instead, virtuous individuals must place themselves within a larger whole—either a divinely ordered historical process, or a rationally designed set of natural ends.

A morality of extremity, then, seems to be excluded by the idea of cosmic justice. Yet in two instances, our authors mention the possibility of exceptions. Michael Walzer reports a talmudic example in which the rabbis dis-

cuss God's immoral commands to Saul. Similarly, Bassam Tibi calls attention to the Islamic precept, "Necessity overrides the forbidden," adding that the criteria for determining emergencies are vague. Yet, given what I have said about theodicy as providing an ethical constraint on the conduct of war, these examples are anomalous because they suggest that evil is condoned to achieve good. Judaism, Catholic natural law morality, and Islam adhere to a cosmology with a just God, and a just God ought not to permit such an ethic. A God who allows such an ethic would seem less perfect than a God who requires both means and ends to be moral.

Here we must observe an obvious difference with the tradition of realism, even the highly disciplined version discussed by David Mapel. As I have said, realist concessions to necessity, even if only occasional, are (or should be) inconceivable to an ethic shaped by belief in divine justice. Indeed, if we understand the epistemological implications of theodicy correctly, the main issue between a traditional Muslim, Jew, or Catholic natural lawyer, on the one hand, and a realist, on the other, would turn on whether claims of necessity are self-deceiving. For an ethic constrained by belief in theodicy, the concept of permitting morality to be sacrificed to necessity is premised on an untruthful, or at least deficient, vision of the good.

Realists can respond to these concerns in one of two ways. First, they may acknowledge the importance of divine justice for an ethic of war, but might nonetheless resist a morality of absolute rules when it comes to settling matters about war's means. Among Christian realists, for example, Reinhold Niebuhr counsels some restraint in war, arguing that since humans cannot successfully adopt a posture of holiness, their aims in war ought to be restricted to modest ends. For Niebuhr, statecraft should be directed toward eradicating evil and creating relatively just political arrangements, not toward establishing "holy" regimes. The Christian, he asserts, "worships a God whose goodness (holiness) transcends all forms of goodness known in history, all of which are tainted with sin."⁷ For Niebuhr, the ends of holiness and righteousness lie beyond history, which is finally in God's control. Those who adopt an ethic of total war, or holy war, arrogate to themselves a power to direct history that exceeds the limits of human knowledge and virtue. For finite human beings, only a war of limited ends is warranted.

Niebuhr understands war's means to be set by the criterion of proportionality, not of discrimination as an indefeasible rule.⁸ In his mind, absolute rules incline us to be self-righteous and legalistic in our assessments of human action. "Legalism" denotes the characteristically Protestant anxiety that rigorous moral codes lead us to become sanctimonious and pharisaical when evaluating others' actions. With an ethic of absolutes, we are liable

to commit the sin of pride. Niebuhr's ethic of limited means is thus unable to generate a strict set of immunities for noncombatants.

Once again, the danger of arrogating to ourselves more virtue than is warranted in a sinful history is relevant to the ethics of war. The idea that holiness and righteousness are beyond history places limits on the kinds of judgment that we can make about the methods used in war. An outlook that is wary of pharisaism thus allows for considerable liberty (and vagueness) about what may be permitted short of total war. In this way, Niebuhr argues *both* in behalf of the relevance of theology for setting the proper ends of war *and* for a more relaxed basis for assessing the means of war, which may leave open the door for killing in the name of necessity or utility.

Second, realists might respond to concerns about divine justice by saying that ethical constraints imposed by a belief in theodicy distract us from the more modest and manageable issues that surround the morality of extremity. For many realists, the key issue is not whether concessions to necessity suggest that the unjust have an advantage over the just. Instead, the issue is whether it is worse to allow an evil or to commit one. To this, realists usually add that history provides limited options in which to exercise justice.⁹ So, realists could say, we all agree that injustice occurs when nefarious forces tyrannize innocent people. If those forces are especially effective and well organized, the realist might argue that using immoral means as a way of protecting innocent people may be the lesser of two evils in a world of limited alternatives. Disagreements between realists and Jews, Muslims, and Catholic natural lawyers would turn, then, not on the issue of theodicy, but on the issue of whether permitting an injustice is worse than committing one. For the realist, the latter is not always or obviously more troubling than the former, especially when the suffering of present and future generations is at stake.¹⁰

Christian pacifism differs from Judaism, Islam, and the Catholic natural law tradition because its practitioners draw a sharp distinction between war and peace. In contrast to the view that God has commanded war in the past, or the natural law view that war can serve the end of peace, the Christian pacifist believes that a new dispensation has begun: the peaceable kingdom inaugurated by Jesus. This conviction allows representatives of Christian pacifism to distance themselves from other points of view by adopting a dualistic framework, sharply distinguishing between worldly and divine power, the "house of fear" and the "house of love," the conduct of war and the virtue of peace. The main idea is that non-Christian beliefs about God's actions in history, natural law morality, and political realism have inaccurate notions of power, and must be replaced by the paradoxical story of God's power-in-death.

As Ted Koontz writes, many Christian pacifists adhere to the seemingly irrational notion that the meaning of history is displayed not in worldly struggles and triumphs, but in Jesus's crucifixion. This paradox has important epistemological implications: what is foolishness to the world is in fact godly wisdom, as disclosed in the New Testament. The effect of this perspective is to call into question conventional modes of rationality. The problem of war is managed first and foremost not along ethical lines, but in terms of a theologically informed epistemology: in war we are deceived about what is really and effectively powerful.

Yet even here the belief in divine justice is indispensable. Central to Christian pacifism is the conviction that those who adhere to their moral convictions can be assured that the heavens will not fall. Indeed, as Koontz points out, Christian pacifists sharply distinguish between the heavens and political life; even if the latter fall, the overall order of life continues to reside in God's care.

This theological outlook has important ethical implications. It means, among other things, that the extremity posed by war cannot override the more comprehensive virtues of peaceableness. Indeed, if nonviolence is required by belief in a just God, then Christian pacifists need not worry about the political consequences of their views, since theodicy assures us that good will come to those who believe (and behave) rightly. Here, too, emphasis falls on belief in divine sovereignty, although with fewer connections between God's ordering of history and human politics than we witness in the dominant religious traditions in the West.¹¹

Jews, Catholic natural lawyers, Muslims, and Christian pacifists who believe that the cosmos is on the side of justice need not exclude *tout court* a belief in tragedy, the idea that moral experience may sometimes include regrettable events or intractable evil. Unjust suffering, incomprehensible twists of fate, or undue distress are all recognized as ineradicable features of everyday life. But within Judaism, Christianity, and Islam the key question is, how ought one to respond to these kinds of events? Traditionally, the presence of evil in the world has not sufficed to undermine the belief in divine justice. Rather, it has sharpened ethical questions about what individuals may do to mitigate the presence of evil without succumbing to its temptations.

SYMBOLISMS OF EVIL

Attention to the reality of evil, then, is scarcely foreign to religious beliefs about providential justice. And, as the essays in this volume make clear, human wrongdoing is frequently associated with the causes of war and events within war. But how the various traditions symbolize the reality of evil is by no means simple or monolithic. The essays in this collection draw

upon alternative paradigms of evil, suggesting two quite different visions of war. I will call these visions the “intentional” or “virtue” paradigm, as opposed to the “contamination” or “defilement” model.¹²

According to the first model, the chief symbols of evil in war are *internal* to the agents engaged in battle. In particular, war is seen as caused by an other who is guilty of *pleonexia*, or “grasping,” the Greek vice of avarice. War is occasioned by those who lack self-restraint, individuals or groups who are ruled by their passions. This attention to the moral psychology of war lies at the heart of Plato’s account of the causes of conflict in the *Republic*: internal disorder wreaks disorder between individuals and communities. Similarly, psychological factors shape the rejection of war in much of the tradition of Christian nonviolence. Citing James 4:1–2a (RSV), Koontz calls attention to pacifists’ anxieties about the evils of war: “What causes wars, and what causes fightings among you? Is it not your passions that are at war with your members? You desire and do not have; so you kill. And you covet and cannot obtain; so you fight and wage war.” Accordingly, war is seen as occasioned by greed and collective egoism, disruptive impulses, and a weakness of moral character.

Although just war theory obviously departs from Christian nonviolence by permitting the use of lethal force to settle disputes, it nonetheless holds to the view that war is justified only if it avoids these same psychological evils: malice, a delight in destruction, a thirst for cruelty. In Western ethics, this line of symbolism finds its roots in Augustine and occupies a central place in the Catholic natural law tradition. By definition, a just war is an institution that is not intrinsically immoral. Yet war can be the occasion of sin if one’s passions get caught up in bloodshed, heedless destruction, or the passion for vengeance. Indeed, on this point the Catholic natural law tradition has a great affinity with feminism, as represented by Jean Bethke Elshtain: in either case, the test of morality is to engage in political action with a chastened civic virtue, one in which the *raison de guerre* is denied its totalizing temptations. Even for realists, interiority is sometimes important. As Mapel reports, some realists argue that a statesman’s motives can redeem actions that would otherwise produce dirty hands.

This attention to passions, motives, and virtue stands in contrast with a line of symbolism in Judaism and Islam that I have called the “defilement” paradigm. Here the symbolism points not so much to the interior regions of agency as to the abominations of idolatry and the sources of contamination.¹³ One purpose of preventive war in Judaism, Walzer writes, is to “diminish the heathen so that they do not come up against [the Israelites].” Maimonides envisions the messianic war as intending “the elimination of idolatry from the world.” Similarly, in Islam the object of *qital* is to fight against polytheists, or idolaters. In these traditions, those against whom one should fight are construed as more *other*, more alien, than the enemy

in the first paradigm. As Walzer notes, the Jewish literature shows a keen sense of “prevailing hostility” (*eivah*) between those inside and those outside the religious community. Owing to their strangeness, outsiders are not to be tolerated; indeed, they are to be removed or subdued.

Moreover, in this second paradigm, war is not so much a trial of rightly ordered relations and intentions as it is an instrument of purity in an environment that is otherwise dangerous or unclean. The symbols are, or ought to be, more material and tangible than those we find in the first paradigm. War protects the people of Israel or Islam from wrongful contact, defending the faithful from the dangers of religious pollution and association with idolaters. Thus, it should come as no surprise that the grounds for war, or the practices within war, may be more militant and less tolerant than standard versions of the just war tradition. War is not simply an instrument of peace and harmony, it is literally iconoclastic, an instrument to rid the world of its graven images or polytheistic practices.

The difference between these paradigms, then, is between disordered passions on the one hand, and purity and danger on the other. In each case, moreover, our attention is called to the relation between war and identity, especially the anxiety that moral identity might be corrupted. But each model provides a different way to understand identity, evil, and the relation between the two. In the first model, evil is largely negative: it is a privation of good, a *disordered* intention, motive, or relation. Here evil is like a bodily organ that has become dysfunctional. In the second model, however, evil is largely positive: it has its own energy and presence, together with a certain tangibility. In this case, evil is more like a virus, with its own agency and mobility.

In addition, each paradigm suggests a certain “porousness” between the interior regions of the agent and the external world, but the way in which these regions affect each other is quite different. Consider again the virtue paradigm: when the passions are disordered, there is the danger that violence will escalate and lead to dangerous external consequences. The greater thirst for killing jeopardizes the lives of others. Hence the need to control the passions, either in an ethic of Christian nonviolence or in a just war. Otherwise those involved in war will become guilty of the vices that caused war in the first place: avarice, hatred, or lack of temperance. In the second model, the line of movement goes the other way, from the external to the internal. If the idols are not removed, there is the danger that their impurities will contaminate the religious community from without.

These different symbolisms might help us understand why, as Walzer and Tibi suggest, Judaism and Islam hold views of war that do not fit neatly into the categories of the just war tradition. Just war criteria, as Finnis’s

essay makes clear, operate according to the symbols of evil typical of the first paradigm. But the symbols of pollution and iconoclasm suggest different understandings of human agency, different sins that war might occasion, and different problems that war must rectify.

HERMENEUTICAL QUESTIONS

A final set of observations surrounds the problem of interpreting and representing a tradition. Given the diversity of events, practices, and intellectual resources that shape the life of any tradition, what data are to be included in an author's account of that tradition? What is eligible and what is irrelevant in the representation of a tradition? These questions are necessarily complicated by our idea of what constitutes a "tradition," understood in formal, general terms. That is, how one constructs an account of a specific tradition will be a function, in some measure, of *prior* interpretive decisions about what a tradition looks like, conceived in the abstract.

David Kelsey has done some helpful work on a related subject, namely, the task of using the Bible to support an argument in Christian theology.¹⁴ Kelsey likens the question, "How should theologians use scripture?" to the statement, "Let's play ball." How one conceives of "playing ball" depends largely upon what kind of game one has in mind: basketball differs from soccer, which differs from volleyball, etc. Similarly, appeals to scripture in theology are constrained by how the Bible is conceived as a whole. If it is conceived as a collection of snippets of enduring advice, then one's appeals will doubtless draw upon wisdom materials, and one's theology will in all likelihood include much aphoristic, this-worldly advice. If, however, the Bible is viewed as the revelation of law, then one's theology will doubtless assume legal and apodictic overtones. To take a third possibility, if one conceives the Bible as a series of paradigmatic events, histories with moral messages, then emphasis will fall on narrative rather than on wisdom or law. Or, to take a fourth alternative, if the Bible is viewed as a source for prophetic commentary and ideological critique, then one's use of scripture will draw more from its political literature than from its aphorisms, laws, or stories. Proverbs, Leviticus, Exodus, and Amos would assume different levels of prominence in one's use of the Bible, depending on one's conception of the text in its entirety. A theologian's use of biblical passages, in short, is the product of prior interpretive judgments about scripture as a whole, judgments that have no small effect on what is privileged as authoritative.

This volume provides quite diverse decisions about what constitutes a tradition. These decisions, in turn, bear directly upon what our authors consider to be representative or authoritative material in the traditions

they seek to describe. Yet in their representations of their respective traditions, what they include and exclude is not always obvious.

Consider, first, the Catholic natural law tradition. As depicted by John Finnis, this tradition is an ethical theory at the heart of which stands an account of essential human purposes and ends. The goal of the theory is to inform individual consciences about how aims should be directed. Moreover, the tradition is depicted as having achieved consensus on many issues: the justification of war, indefeasibility of noncombatant immunity, and political obligation, to name three.

The advantage of viewing this tradition as a theory is that it enables Finnis to insert his voice into this account of natural law morality, allowing for a critical, reconstructive appropriation of its main tenets. On these grounds he shows that, by the tradition's own logic, it erroneously allowed for wars of punishment in addition to wars of self-defense. The disadvantage is that representing Catholic natural morality as a theory with a strong consensus may obscure real differences or substantive changes within the tradition itself.

The problem, stated differently, concerns streamlining the Catholic natural law tradition. Consider, for example, the issue of religion as a grounds for war. As represented here, the Catholic natural law tradition does not include differences of religion or wrong belief as grounds for war; traditionally, war was justified in terms of self-defense or punishment of wrongdoing. But in fact these grounds were general enough to allow religious sanctions to justify the use of lethal force. In the *City of God*, for example, Augustine provides a basis for wars on religious grounds that later just war theorists would have to revise. According to Augustine, false religion is an injustice against God, a disordered relation. Accordingly, force could be used to set relations in their proper proportion, to correct a wrong.¹⁵ Viewing lethal force as an instrument to restore the order required by peace, Augustine sanctioned war to repair the relation between God and infidels, who deny God His just due. If war can help to restore proper relations between communities contending over temporal goods, such as property or the right to rule, then war can certainly repair the *ordo pacis* when the stakes are higher, as when eternal goods such as religious truth are at stake. For this reason, Augustine knew no ecumenism.

Yet things were to change in the sixteenth century. Owing to the work of Vitoria and Suarez, religious factors were removed as grounds for a just war. Writing during the Spanish conquest of the Americas, Vitoria and Suarez self-consciously secularized the criterion of just cause, arguing that religion was irrelevant either to self-defense or to the rectification of wrongdoing.¹⁶ And they did so, it should be noted, not by arguing that the traditional view was logically inconsistent, but by revising its substan-

tive understanding of justice. The core of their argument was that matters of faith were irrelevant to claims of title to dominion. This effort to secularize the traditional view of just cause turned on the claim that wrong belief did not deny indigenous populations rightful dominion over their land. Territorial dominion is only a temporal, natural good, the argument went, to be separated from supernatural matters of faith and religion. Accordingly, those Spaniards who sought war against Native Americans would have to find a sanction other than paganism for seizing their cities and property.

The point of this example is to illustrate internal fissures within a tradition, to remind us that the Catholic natural law tradition does not speak with one voice about the grounds for war. Instead, early modern just war theorists had to struggle to define the limits according to which harmony, the tranquility of order, and the rectification of wrongdoing could sanction the use of lethal force. That they overtly and covertly quarrelled with their authoritative sources over substantive matters leaves us with less than a streamlined view of the tradition as a whole.

Tibi provides a second view of what constitutes a tradition: a deposit of juridical decisions that presuppose a fixed, unchanging worldview. This worldview emerged prior to the development of the sovereign state system and is thus inimical to many current assumptions about international relations. Muslims (like Jews, as Walzer reports) have difficulty reckoning with the fact of sovereign statehood. Tibi's representation of the Islamic tradition as fixed and final allows for little (if any) "cultural accommodation" to changing circumstances in politics or history.

Here the idea of the development of doctrine or the historicity of doctrine might allow for more hermeneutical flexibility than we see suggested by Tibi. In modern Christianity, by way of comparison, there has been a quest to demythologize religious dogma and to understand the relativity and historicity of doctrinal formulations. This awareness of historicity has allowed for interpretive flexibility, given the philosophical conviction (found in the work of Friedrich Schleiermacher and Ernst Troeltsch) that religious teachings are historical and contextual.¹⁷ The effect of this contextualization is to require ongoing interpretation of religious beliefs given new cultural and political developments. The authoritative sources cited by Tibi, in contrast, represent religious teachings as ahistorical and unchanging. Thus we might ask: in order to adjust to modern institutions like the sovereign state, does Islam need the revolution of historical consciousness?

Tibi's chapter suggests an affirmative answer, and on this hermeneutical point Sohail Hashmi enters the discussion. Hashmi presents Islamic ethics as dynamic and evolutionary, adapting to changes in international relations and Islamic attitudes toward Westerners. In this view, tradition is polyvalent.

lent and adaptive. The implications of its foundational sources require ongoing interpretation, given the changing cultural, political, and economic contexts in which Muslims find themselves.

Walzer's account of Judaism is similar to Hashmi's presentation of Islamic ethics, providing a third example of how we might construe a tradition. For Walzer, tradition is neither an ethical theory nor a timeless worldview, but an ongoing argument, a conversation. In Judaism, this conversation takes the form of textual commentary, carried out over generations by an educated male elite that was (unlike Muslim jurists) exiled from centers of political and military authority. Owing to this lack of power, rabbis were forced to discuss war largely in speculative terms, in the abstract. Here, too, we might ask what this notion of tradition emphasizes, and what it excludes, in its depiction of Jewish moral reflection.

Walzer acknowledges the problem that surrounds selection, interpretation, and representation when he remarks that "if the [Jewish] tradition is to serve contemporary uses, it must address itself to the full range of Jewish experience." Like Tibi, Walzer is aware that premodern assumptions within religious traditions may hinder cultural accommodation today. Yet the problem to which Walzer alludes—the limits of Jewish reflections about war and power—may well be a function of his own principle of selection. Why is the Jewish tradition reducible or equivalent to the teachings of the rabbis on war, removed as they were from power politics? Dependent upon these sources alone, Jews are left with few resources with which to assess the morality of gentile wars. Such sources obviously lack a vocabulary for secular social criticism. By this view of the tradition, how could a Jew evaluate the Gulf War? Could an American Jew draw ethical resources from Jewish sources to evaluate the morality of the Vietnam War?

One way to address these questions is to ask whether Judaism offers resources for a natural law morality, which would furnish more general, humanistic principles for evaluating policy and statecraft. Jews seeking to move beyond rabbinic materials might find norms for social criticism in the Noahide covenant, which focuses on God's relationship not with Israel but with humanity as a whole (Gen. 9:1–17). As part of this covenant, God recalls the law against murder, the validity of which is grounded in creation: humans are made in God's image (Gen. 9:6). Ethical inferences might thus be developed from the notion of *imago Dei*, the idea that human beings have inherent dignity because they bear the image and likeness of God (cf. Gen. 1:26; Ps. 8). Such biblical materials can serve as a resource for crafting more generalizable ethics of war, human rights, and political action, grounded in the natural good of human well-being. Walzer may have philosophical doubts about natural law morality or the notion of *imago Dei*, but for the purposes of representing Judaism's resources, such reservations

are beside the point.¹⁸ A fuller rendition of Judaism may include not just a divine command morality, but also some version of natural law morality, drawing from biblical materials.¹⁹

Like Finnis's account of the natural law tradition, Mapel's account of realism represents it as an ethical theory. In addition, Mapel sees realism as a set of views along a spectrum: both unity and difference exist within the realist camp. The common thread in realism is the rejection of deontology or "moralism" in its ethics of statecraft. But realists differ about when principles are to give way to the demands of prudence or utility. For some realists, the interests of the state are central and ought never to be compromised, regardless of the moral principles at stake. Less radical realists are willing to sacrifice moral principles only as a last resort—for example, in a situation of supreme emergency.

I have already indicated why an account of divine justice would resist even moderate views of realism, and how realists might rejoin. But here we are focusing on the hermeneutical challenge of representing a tradition, and on this score we should note the merits of Mapel's account. The advantage of his approach is that he allows for some obvious differences within a common group. Mapel thus invites us to view traditions as family resemblances, where views overlap. In order to identify a tradition, then, we need not find strict uniformity about specific problems or opinions; we may proceed with more modest expectations, seeking to find an overlapping consensus. The fact of variety within the realist tradition does not imply confusion or anarchy of meaning about what constitutes a "realist." To distinguish realists from nonrealists we need only to reason analogically, attempting to determine where similarities are sufficient to justify a common classification.

A similar view of tradition is implied by Elshtain's treatment of feminism, although it includes greater diversity than we find among realists. Here tradition is conceived as a series of discourses that derive from the common source of women's experience. Again we find an attempt to join unity and difference and reckon with the fact of intratraditional pluralism.

In Elshtain's account, the attempt to detect a family resemblance among feminists oscillates between two poles. On the one hand, feminism is depicted in terms of the literatures of women who have addressed various forms of political and social combat. On the other hand, feminism is conceived as a form of ideological criticism, resisting the hegemony of patriarchal values. The former seeks to articulate the voices of women, however much some of them remain complicit with patriarchal institutions (the Spartan Mother, for example); the latter expresses greater resistance to institutions in which women are subordinated to male power. The family resemblance lies in the fact that feminism articulates a vocabulary of social

criticism, seeking to situate the voices and experiences of women in the public realm.

Perhaps the most notable feature of this tradition is that it is historically self-conscious, aware of its origins and political genealogy. As Elshtain makes plain, feminism has scarcely emerged *de novo*; it has rather sought to extend the implications of Enlightenment philosophy beyond its patriarchal articulations. Feminism both depends upon and resists liberal ideals, and thus stands in tension with one of the chief institutions of liberal philosophy, the nation-state. This genealogy has left feminist political philosophers wary about their roots. Here the knowledge of a tradition's genealogy leads to the conclusion that it must appropriate the resources of critical theory to engage in ongoing social criticism. Hence (for Elsh-tain) the need to adopt an ironist rhetoric, which remains connected with political institutions without compromising the quest for liberation from oppression.

Koontz's interpretation of Christian nonviolence sharpens the distinction between the importance of experience on the one hand, and intra-traditional pluralism on the other. As a result, Koontz depicts the tradition of Christian nonviolence as having two dimensions. The first is that of *praxis* as foundational for identity. The Christian pacifist, for example, begins with the "first language" of experience, especially as it is shaped by symbol and worship. Here the tradition of Christian nonviolence is depicted principally as a way of life, rather than a discursive argument. Emphasis falls on pacifism as a way of seeing and of being. Discursive arguments, Koontz's "second language," may be needlessly intellectualistic. If we have to think or argue about what to do, then we are less than fully socialized; for those whose identity is intact, in contrast, moral action should be thoroughly habituated.

Koontz presents an additional dimension in his interpretation of Christian nonviolence: it is pluralistic, a family of overlapping types (pacifism, abolitionism, nonviolent resistance). These types are held together by an understanding of power that eschews military methods. Power resides in example and persuasion (pacifism), reason and education (abolitionism), or withdrawal of consent (nonviolent resistance). Moreover, practitioners of nonviolence reject a consequentialist morality, especially the morality of extremity. Drawing on their faith in God's providential direction, as I have noted, members of this family feel no need to make history come out right. The majority view the presumption against war as absolute, never to be compromised; those who are less radical are willing to participate in war only as a last resort, to end all wars. In either case war is evil, and the main question is whether it is to be avoided or removed from human affairs.

This typological account of Christian nonviolence, like Mapel's inter-

pretation of realism, enables us to understand a tradition as composed of family resemblances, combining unity and plurality. Once again we are asked to think about similarities and differences within a tradition and to ascertain where or to what extent its various components overlap.

CONCLUSION

My analysis is meant to suggest that comparative reflections about war and peace operate along two levels. First, we can compare by examining how the various traditions contribute to our collective understanding of the morality of killing and political decision-making. Here reference to theological beliefs and symbols helps to clarify points of convergence and divergence concerning specific ethical issues like the causes of war, the evils in war, or the morality of extremity. But left to these matters alone, comparison would be incomplete and perhaps deceptive. We must also take into account how the traditions are conceived *as traditions*, understood in the abstract. Whether a tradition is construed as an argument, a premodern worldview, an ongoing textual commentary, a family resemblance, a series of discourses from a common source of experience, or a form of *praxis* will have no small bearing upon the extent to which it is open to comparison and dialogue from without.

For *formal* reasons, in other words, some traditions will have more (or less) reason to “converse” than will other traditions, given some basic assumptions about how to approach political philosophy and ethics. On these formal grounds it would be difficult to imagine what practitioners of Christian nonviolence, as depicted by Koontz, and the representatives of the Catholic natural law tradition, as depicted by Finnis, would have to say to each other. The former’s first language is nondiscursive, whereas the latter’s is discursive. Yet we might expect considerable dialogue between pacifists and feminists given that both traditions rely upon experience, especially the experience of being marginalized by centers of power. Natural lawyers and realists have strong reasons to engage in dialogue, given their similar orientations to political philosophy as a discursive, theoretical practice. Judaism and Islam must both struggle to bring their traditional beliefs into dialogue with modernity, and in this regard may find resources to engage each other as well.

Willingness to converse at this formal level, of course, does not imply agreement about more specific issues in the ethics of war and peace. The experience of marginalization may lead pacifists and feminists to adopt quite different attitudes toward the morality of violence, as the examples of the nonviolent resister and Spartan Mother make clear. The idea that tradition is a form of argument in Catholic natural law and realism by

no means suggests that representatives of these traditions will agree about the morality of extremity. I call attention to these formal aspects only to show that complex factors facilitate (or hinder) conversation in a world of moral and religious diversity. Convergences among and divergences between traditions operate at more than one level, and we would be mistaken to concentrate our attention (and hopes) on specific ethical and political issues alone.²⁰

NOTES

1. Finnis attempts to provide an account of the natural law, especially its grounds of obligation, in nontheological terms. See John Finnis, *Natural Law and Natural Rights* (Oxford: Oxford University Press, 1980), pt. 2 and passim.

2. St. Thomas Aquinas *Summa theologiae* I-II q. 94 a. 2.

3. Aquinas *Summa theologiae* I-II q. 91 a. 2.

4. Aquinas *Summa theologiae* I q. 44 a. 3; see also I q. 2 a. 3. It is true, as Finnis argues, that the knowledge of God is not necessary as a ground for the natural law's obligation. A Thomist need not say that natural virtue is obligatory because it is commanded by God. For Aquinas, as for the Stoics and for the Greeks in general, virtue is its own reward. Yet even if Aquinas can separate grounds for moral motivation from knowledge of God's will, that does not mean that he can separate the objective structures of natural justice from the overall justice of God as designer of creation. The former is an epistemological issue, the latter an ontological one.

5. Finnis's embrace of this outlook appears in John Finnis, *Fundamentals in Ethics: Tradition, Revision, and Truth* (Washington, DC: Catholic University of America Press, 1991), 105–6.

6. For a discussion of anticonsequentialism in just war theory and pacifism, see Paul Ramsey, *Speak Up for Just War or Pacifism: A Critique of the United Methodist Bishops' Pastoral Letter "In Defense of Creation,"* with an epilogue by Stanley Hauerwas (State Park: Pennsylvania State University Press, 1988).

7. Reinhold Niebuhr, "Just or Holy?" *Christianity and Crisis* 1 (3 Nov. 1941), 1.

8. For a discussion, see James F. Childress, *Moral Responsibility in Conflicts* (Baton Rouge: Louisiana State University Press, 1982), 29–61.

9. This, too, is a theme in Niebuhr's writings. See, for example, Reinhold Niebuhr, *Christianity and Power Politics* (New York: Charles Scribner's Sons, 1940), ch. 1.

10. I take this to be the gist of Michael Walzer's notion of "supreme emergency" in *Just and Unjust Wars* (New York: Basic Books, 1977), ch. 16. Realists sometimes ask us not only to embrace the lesser of two evils, but to do so with the welfare of a community's children (and their children) in mind. Perhaps this is why the survival of the state, or the community, plays an important role in realism: the community provides the material (and other) conditions for the lives of future generations.

11. See, for example, Menno Simons, *The Complete Writings of Menno Simons, c. 1496–1561* (Scottsdale, PA: Herald Press, 1956), 582–622.

12. Here I am drawing loosely on the work of Paul Ricoeur, *The Symbolism of Evil*, trans. Emerson Buchanan (Boston: Beacon Press, 1967).

13. For an illuminating discussion, see Mary Douglas, *Purity and Danger: An Analysis of the Concepts of Pollution and Taboo* (London: Ark Paperbacks, 1984).

14. David Kelsey, *Uses of Scripture in Recent Theology* (Philadelphia: Fortress Press, 1975).

15. Augustine, *City of God*, trans. Henry Bettenson, with an introduction by David Knowles (New York: Penguin Books, 1972), bk. 19, paras. 23, 24. For a discussion, see John Langan, "Elements of St. Augustine's Just War Theory," *Journal of Religious Ethics* 12 (Spring 1984), 19–39.

16. See Francisco de Vitoria: *Political Writings*, ed. Anthony Pagden and Jeremy Lawrance (Cambridge: Cambridge University Press, 1991), 233–92, 302–3; Francisco Suarez, "On War," in *War and Christian Conscience*, ed. Arthur Holmes (Grand Rapids, MI: Baker Book House, 1975), 212–14.

17. See Friedrich Schleiermacher, *The Christian Faith*, ed. H. R. Mackintosh and J. S. Stewart (Philadelphia: Fortress Press, 1976), paras. 15, 19; Ernst Troeltsch, *The Social Teaching of the Christian Churches*, trans. Olive Wyon, with an introduction by H. Richard Niebuhr (Chicago: University of Chicago Press, 1981).

18. In all likelihood, Walzer would say that a theory of natural morality is thin and overly general, as opposed to a more contextual, local morality, which is thick and particularist. See Michael Walzer, "Moral Minimalism," in *Thick and Thin: Moral Argument at Home and Abroad* (Notre Dame, IN: University of Notre Dame Press, 1994), ch. 1.

19. In recent Jewish thought, the ethical implications of viewing the human person as an image of God are discussed in L. E. Goodman, *On Justice: An Essay in Jewish Philosophy* (New Haven, CT: Yale University Press, 1991), 28–31, 53–58, and passim; see also David Novak, *Jewish Social Ethics* (New York: Oxford University Press, 1992), 68, 135, 165, 238. For a discussion focusing on classical materials, see Michael P. Levine, "The Role of Reason in the Ethics of Maimonides: Or, Why Maimonides Could Have Had a Doctrine of Natural Law Even If He Did Not," *Journal of Religious Ethics* 14 (Fall 1986), 279–95.

20. I am grateful to Scott Alexander, Judy Granbois, Barbara Klinger, Terry Nardin, and David H. Smith for comments that enabled me to improve this chapter.

